

PURCHASE ORDER

JERRY LEIGH ENTERTAINMENT APPAREL
7860 NELSON ROAD VAN NUYS CA 91402
PHONE (818) 909-6200 FAX (818) 909-7855

Ex-Country:

Ex-Country Date:
6/22/2023

ETD Date is "On-Board" Vessel Date

PO NO IJ6193

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SEASON: P/23

PAGE

VENDOR REP: AMIN AND ZAKIR

VENDOR PHONE/FAX: 114-133-8133/

2236

V GOLDEN STARS TEXTILE
E 3641/1570 SEKINA VILLAGE
N EL AWAYED
D
O ALEXANDRIA, EGYPT **
R 21938

S DS TRANSFER/JERRY LEIGH
H 1000 BELLEVILLE TURNPIKE
I
P
T KEARNY NJ
O 07032

ORDER DATE		SHIP VIA		F.O.B.			TERMS		NA
5/31/2023		BOAT		PORT OF ORIGIN			SHIPMENT TERMS FOB		
QTY ORDERED	ITEM#		DESCRIPTION				PRICE	PER	EXTENSION
27540	JT26167	F3525A	DKS DARK STONE				9.35	U	257,499.00
	MINERAL WASH WIDE NECKBAN								
	P23	TAYLOR INT TOUR SWEA							
SIZE/CARE	LABEL								
Size		X-SMALL	SMALL	MEDIUM	LARGE	X-LARGE			
Qty		3090	5220	7470	6870	4890			
2472	LT26167	F3525A	DKS DARK STONE				9.75	U	24,102.00
	MINERAL WASH WIDE NECKBAN								
	P23	TAYLOR INT TOUR SWEA							
SIZE/CARE	LABEL								
Size		2X							
Qty		2472							
Should seller at any time be in violation of the consent/manufacturers agreement it has signed for the benefit of Disney Enterprises, Inc. ("Disney") or Disney's code of conduct for manufacturers. Purchaser may, at its option and without limitation of its rights, cancel this purchase order and/or any agreement that may exist between seller and purchaser for future orders. No such agreement for future orders is to be implied by this purchase order or seller's acceptance hereof.									
All fabrics, trims and accessories must adhere to Consumer Product Safety Commission (CPSC), Consumer Product Safety Improvement Act 8-2008 (CPSIA), CA Prop 65, and Federal Trade Commission (FTC) regulations									
Vendor is required to comply with all US Federal Code and Consumer Products Safety Commission (CPSC) regulations including 16CFR 1610 (Wearing Apparel Flamability). Acceptable test results from a CPSC-certified 3rd party lab MUST be available along with the General Certificate of Compliance prior to the final audit, and MUST be approved prior to production on release. Test results and General Certificate of Compliance must be emailed to CPSIA@jerryleigh.com and uploaded to NGC prior to production release, and must be submitted with shipping/customs documents forwarded to the broker. Test reports are valid for one year per style, and color as long as									

Seller must execute acknowledgement copy hereof and return to buyer. No other form of acceptance is binding on buyer. This order expressly limits acceptance to the terms stated herein and on the reverse side hereof and any additional or different terms proposed by seller shall not be binding on buyer, whether or not they would materially alter this order, and are rejected.

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5/31/2023	BOAT	PORT OF ORIGIN	SHIPMENT TERMS FOB	
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component, materials, mill/sewing factory are the same.

Vendor must contact the Jerry Leigh Shanghai Representative Office to arrange for final QC shipping audit prior to release of shipment. Production shipped without authorization is subject to cancellation, return, and/or chargeback.

As of January 26, 2010, U.S. Customs has required that all importers who do not comply with the mandatory 10+2 form (ISF filing) will be penalized. The completed 10+2 form is to be provided to Jerry Leigh 48 hours prior to vessel departing from

port of origin. The penalty for each missed, late or incorrect 10+2 entry is \$5000.00. In the case that the 10+2 form is not filed correctly or on time, the vendor will be charged the penalty incurred. This 10+2 rule is only applicable for ocean shipments and does not apply to air, rail or truck shipments.

30012 <===== T O T A L =====> 281,601.00

COUNTRY OF ORIGIN: Egypt

PORT OF EXPORT : DAMIETTA

PORT OF ARRIVAL : United States of America

PACKING INS. ADD'L CARE LABEL INFO: GST IJ6193 0623

PACKING INS. REFER TO TECH PACK/BOM/BOARD FOR REQ'D LABELS/TAGS/STICKERS & PLACEMENT

LABELING INS. SIWFT MERCH INTERNATIONAL;

SPECIAL INS:

PACKING INSTRUCTION BYSTYLE--pack by style in one box

PRCE TKT/STK PLC TOP NO--NONE

PACKING INS:

HANGER/FOLD DIMNS PRFD--PRINTERS FOLD

SAMPLE 1-M TOP FOR MICHELLE

COMMENT-1 PACK AS BEFORE SAME QTY PER CARTON

COMMENT-2 ONE MASTER POLY BAG OR CARTON LINER

<===== Packing Instructions =====>

All cartons must be 2 inches minimum height. It is crucial that cartons be neither

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	1000 BELLEVILLE TURNPIKE
	KEARNY
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5/31/2023	BOAT	PORT OF ORIGIN	SHIPMENT TERMS FOB		
QTY ORDERED	ITEM#	DESCRIPTION	PRICE	PER	EXTENSION
		underpacked nor overpacked. Use strong reshippable cartons without vend or's name. Carton burst strength must be 200 lbs. Mark carton with PO#, RN#, Style, Art#, Color Prepack#. No cellophane bags. Polybags must have "Warning" imprint.			
		<===== END OF THIS P.O. =====>			
BUYER NAME: Pam Wong					X

Seller must execute acknowledgement copy hereof and return to buyer. No other form of acceptance is binding on buyer. This order expressly limits acceptance to the terms stated herein and on the reverse side hereof and any additional or different terms proposed by seller shall not be binding on buyer, whether or not they would materially after this order, and are rejected.

1. No order is valid unless made upon this form and properly signed on the front hereof. This order may not be varied or changed, nor any of its provisions waived except in writing, signed by an authorized representative of the Purchaser. In addition to any other method of acceptance, Seller's shipping the goods, constitutes Seller's acceptance of all the terms and conditions hereof.
2. Notify us within five days of receipt of order, if you are unable to deliver complete by date specified. Late shipments may not be accepted.
3. Delay of three days in shipping sample requirements shall constitute a breach of contract.
4. Where more than one delivery date is specified on the order, or where there are several orders for the same fabric for different delivery dates, failure to deliver all earlier deliveries on time shall give Purchaser right to cancel future deliveries on time shall give Purchaser right to cancel future deliveries.
5. Partial deliveries will be accepted provided:
 - A. All colors are proportionally included in each shipment in the production of original order.
 - B. Purchaser authorized partial shipment.
 - C. Delivery is timely and no additional freight charges are incurred.
6. Term of Seller's order, shipment or approval which are not identical with the terms of this order are not part of the contract between Seller and Purchaser and are not binding upon purchase.
7. You were informed of the particular purpose for which the goods are required and we are relying on your skill and judgement to furnish suitable goods. You warrant that the goods will be fit for our particular purpose. You further warrant that the goods may be shipped, sold, and used in the customary manner without violation of any applicable law, ordinance, code or regulation, or of any government or administrative body. You agree to furnish all guarantees and documents which may be required by the law and to indemnify us against all costs, damages, court costs, and/or attorney's fee arising out of a violation or loss of property or injury or death to persons resulting from goods being defective or of inferior quality. You further warrant that the goods will be in conformity and compliance with the fair labor standards act, with all other applicable federal, state and local law, regulations and ordinances, including but without limiting the generality of the foregoing to the trade practice rules of the Federal Trade Commission, the Textile Fabrics Products Identification Act, the Wool Products Labeling Act and the Flammable Fabrics Act. Seller further guarantees that the goods in addition to being fit for the purpose intended that the goods will strictly conform to the samples presented.
8. The goods shall be free from all defects of workmanship, materials and must conform to the description given to it as well as to previous samples and goods delivered and furnished. Goods that do not conform strictly to this order or are of an inferior quality will be rejected and returned to you. All expenses and transportation charges incidental thereto shall be charged to seller. Seller is not to replace rejected goods, except upon the written instructions of purchaser.
9. Delivery dates must conform to dates specified by Purchaser may refuse to accept or at his option may return at seller's expense, all shipments not made on the shipment date or dates specified in this order, together with any goods theretofore delivered and not used and seller shall be liable to purchaser for any loss sustained by purchaser on account of the non-availability to purchaser of the goods in any case, the purchaser may cancel any undelivered balance of this order. All shipments made at seller's sole risk and responsibility, purchaser reserves the right to reject and return quantities in excess of the quantity ordered, at seller's expense. Notice of the quantity and date of each delivery must be sent to purchaser before shipment of goods. Notify purchaser immediately if seller is unable to deliver or complete by dates specified. Delay in supplying sample requirements shall, at the option of purchaser, void this order.
10. Whenever the fabric or colors are for coordinates sportswear, the color and finish in stripes, plaids, floral patterns, must match the colors in the coordinated group. Reorders must exactly match previous deliveries as to fabric finish and color stripes and plaids must run uniform without any bowing of stripes or plaids, pile fabric must be fast pile, floral patterns must conform to samples without any deviation. When more than one delivery date is specified in an order or where there are several orders for the same fabric for different deliveries, failure to deliver earlier deliveries on time shall give purchaser the right to cancel deliveries of the same fabric. Partial deliveries will be accepted, provided all colors and fabrics are proportionally assorted and included in each delivery. Failure to deliver any of the colors ordered gives the purchaser the right to cancel order and to return the portions shipped at seller's costs.
11. All goods furnished shall be subject to count, inspection and acceptance by the purchaser after actual receipt. Goods of inferior or improper workmanship or defective goods, or goods which are not according to sample, specifications or standard, or otherwise fail to comply with this order may be rejected and returned to the seller. In all cases, all purchaser's loss and charges, including but not limited to, transportation, ability to deliver finished goods, cancellation of orders and all other expenses incident to the return of such goods shall be borne by the seller if one or more colors are defective, the entire shipment of that style shall be returned.
12. Extra costs incurred due to the failure to follow the purchaser's shipping instructions will be repaid to purchaser by seller. Extra cost due to unauthorized part shipments will also be paid to purchaser by seller. No charge will be allowed for boxing, packing or carriage, unless agreed on in this order, any invoice which does not follow the billing instructions appearing on this order or omit required information, or are in error may be redated as of the 1st of the following month.
13. TERMS OF YOUR ACCEPTANCE NOT IDENTICAL WITH THE TERMS OF THIS PURCHASE ORDER WILL NOT BECOME PART OF THE CONTRACT.
14. Purchaser shall not be liable for failure to take delivery of the goods, if such failure is caused by labor disputes, strikes, war, riots, insurrections, civil commotion, fire, flood, earthquake, storm or any Act of God or any other cause beyond purchaser's control.
15. Any controversies arising out of or relating to this order or breach thereof, including any modification, extension, or confirmation of this order shall be settled by arbitration in the City of Los Angeles, State of California, in accordance with the rules then obtaining of the American Arbitration Association. The parties consent to the jurisdiction of the Superior Court of the State of California, and of the United States District Court, Central District, of Southern California. For all purposes in connection with arbitration the parties consent that any process or notice of motion or other application to either of said courts and any papers in connection with the arbitration may be served inside or outside of the State of California by certified mail or by personal service or by any such other matter as may be permissible by the applicable court or the arbitration tribunal. The arbitration shall be bound to follow all of the terms and conditions of this purchase order and they shall have no power to alter any provision of this order and their failure to apply or enforce any provisions of this order in their award or otherwise shall constitute grounds for vacating their award by application to the appropriate court. Any provisional remedies including without limitation, any remedy of injunction which but for this agreement to arbitrate disputes would be available at law shall be available to the parties hereto by application to the appropriate court pending the arbitration award.
16. ANY CONFIRMATION OF THIS PURCHASE ORDER CANNOT ALTER OR AMEND THE CONDITIONS STATED HEREIN WITHOUT A VALID SIGNATURE OF BOTH PARTIES ACCEPTING SAID ALTERATION OF AMENDMENT IN WRITING.